Terms of Service

Last updated: [November] [18], [2025]

Welcome to **Loadout Marketplace** ("**Loadout Marketplace**", "**we**", "**us**", or "**our**"). These Terms of Service ("**Terms**") govern your access to and use of our website, marketplace, products, and services (collectively, the "**Services**"), including any content, functionality, and services offered on or through **loadout-marketplace.com** (the "**Site**").

By accessing or using the Services, you agree to be bound by these Terms and our **Privacy Policy**. If you do not agree, you must not use the Services.

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1. Eligibility

1.1 **Minimum age.** You must be at least **18 years old** (or the age of majority in your jurisdiction) to use the Services.

1.2 **Business use.** If you use the Services on behalf of a business or other legal entity, you represent and warrant that you have authority to bind that entity to these Terms and that "you" refers to both you individually and that entity.

1.3 **Compliance.** You may use the Services only in compliance with these Terms and all applicable laws, rules, and regulations.

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2. Accounts

2.1 **Registration.** To list, buy, or manage transactions on the Site, you may need to create an account and provide accurate, current information. You agree to update your information as needed so it remains accurate and complete.

2.2 **Security.** You are responsible for maintaining the confidentiality of your account credentials and for all activity that occurs under your account. Notify us immediately if you suspect any unauthorized use.

2.3 **Account limitations.** We reserve the right to suspend, restrict, or terminate accounts at our discretion, including for violation of these Terms, suspected fraud, or misuse of the Services.

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3. Marketplace Overview

3.1 **Platform role.** Loadout Marketplace operates a **marketplace platform** that connects sellers offering surplus or leftover construction and DIY materials with buyers looking to purchase such materials. We are **not a party** to contracts between buyers and sellers.

3.2 **No ownership of goods.** Loadout Marketplace does **not** take title to, own, or physically handle the materials listed by users on the Site, unless explicitly stated in a particular transaction.

3.3 **No guarantee of listings.** We do not guarantee that any listing will sell, that any buyer will complete a purchase, or that any user will fulfill their obligations.

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4. Listings and Seller Responsibilities

4.1 **Listing accuracy.** Sellers are solely responsible for the content of their listings, including descriptions, quantities, condition, pricing, location, and any photos or videos. Sellers agree that all information will be truthful, accurate, and not misleading.

4.2 **Condition and quality.** Surplus and leftover materials may be new, used, or partially used. Sellers must clearly describe the condition and disclose defects to the best of their knowledge.

4.3 **Compliance with law.** Sellers are responsible for ensuring that their listings and sales comply with all applicable laws, regulations, zoning and safety codes, and that they have the right to sell the materials (including ownership and any required licenses or permits).

4.4 **Prohibited items.** You may not list or sell:

- Hazardous, stolen, or counterfeit materials
- Items that violate safety standards or building codes
- Items whose sale is restricted or illegal in any relevant jurisdiction
- Any other items we classify as prohibited at our discretion

4.5 **Pickup and shipping.** Sellers are responsible for honoring the stated pickup, delivery, or shipping terms in their listings and coordinating with buyers in good faith.

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5. Buyers and Purchases

5.1 **Buyer responsibility.** Buyers are responsible for reviewing listings carefully and making informed decisions before purchasing. Loadout Marketplace does not inspect or certify materials and does not guarantee fitness for a particular purpose.

5.2 **Inspection.** Where possible, buyers should inspect materials at or before pickup to confirm that they match the listing description.

5.3 **Local regulations & codes.** Buyers are responsible for ensuring that materials they purchase are appropriate for their intended use and comply with applicable building codes, safety regulations, and professional standards.

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6. Prices, Fees, and Payments

6.1 **Pricing.** Sellers set their own prices and are responsible for all taxes, fees, and charges associated with selling their materials, except platform fees assessed by Loadout Marketplace.

6.2 **Platform fees.** Loadout Marketplace may charge sellers and/or buyers platform fees, transaction fees, listing fees, or other charges. Any such fees will be disclosed at or before the time of listing or checkout and may be updated from time to time.

6.3 **Payment processing.** Payments may be processed by us or by third-party payment processors. By using the Services, you agree to the applicable payment processor's terms and privacy policies. We are not responsible for errors, delays, or issues caused by third-party processors.

6.4 **Taxes.** You are responsible for determining and paying any taxes, duties, or similar governmental assessments associated with your use of the Services and any transactions you complete.

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7. Cancellations, Refunds, and Disputes Between Users

7.1 **Between buyers and sellers.** Because Loadout Marketplace is not a party to transactions between users, **any disputes, chargebacks, cancellations, or refunds are primarily between the buyer and seller**.

7.2 **Our involvement.** We may, but are not obligated to, assist in resolving disputes. Our decisions in connection with any such assistance are final and made in our sole discretion.

7.3 **No guarantee of refunds.** Loadout Marketplace does not guarantee refunds, returns, or exchanges, unless expressly stated in a specific program or policy.

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8. Acceptable Use and Prohibited Activities

You agree not to:

- Use the Services in any unlawful manner or for any unlawful purpose
- Post, list, or transmit any fraudulent, false, misleading, or deceptive content
- Circumvent fees or payment processes
- Interfere with or disrupt the integrity, security, or performance of the Services
- Scrape, harvest, or collect information from the Site using automated means (except as permitted by us in writing)
- Reverse engineer, decompile, or attempt to derive the source code of the Services
- Impersonate any person or entity or misrepresent your affiliation with any person or entity
- Upload viruses, malware, or malicious code

We may investigate and take any action we deem appropriate, including account suspension or termination, if we suspect any misuse or violation of these Terms.

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9. User Content and License

9.1 **User content.** “User Content” includes all information, text, photos, images, videos, reviews, ratings, and other materials that you post, upload, or otherwise make available through the Services.

9.2 **Your rights.** You retain ownership of your User Content, subject to the license you grant below.

9.3 **License to Loadout Marketplace.** By submitting User Content, you grant Loadout Marketplace a worldwide, non-exclusive, royalty-free, sublicensable, and transferable license to use, reproduce, modify, adapt, publish, translate, create derivative works from, distribute, publicly perform, and publicly display such User Content in connection with operating, promoting, and improving the Services.

9.4 **Representations.** You represent and warrant that you have all rights necessary to grant the above license and that your User Content does not infringe or violate any third party’s rights or any law.

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10. Intellectual Property

10.1 **Our IP.** The Services, including all software, code, design, text, graphics, logos, and trademarks (other than User Content), are owned by or licensed to Loadout Marketplace and are protected by intellectual property laws. Except as expressly allowed in these Terms, you may not use, reproduce, or create derivative works based on our IP.

10.2 **Limited license.** Subject to your compliance with these Terms, we grant you a limited, non-exclusive, non-transferable, revocable license to access and use the Services for your personal or internal business purposes.

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11. Third-Party Services and Links

The Services may contain links to third-party websites, services, or resources that are not owned or controlled by Loadout Marketplace. We do not endorse and are not responsible for the content, products, or services of those third parties. Your use of third-party sites is at your own risk and may be subject to additional terms and policies.

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12. Disclaimer of Warranties

To the fullest extent permitted by law:

- The Services are provided on an **“AS IS” and “AS AVAILABLE”** basis, without warranties of any kind, whether express or implied.
- We specifically disclaim all implied warranties of merchantability, fitness for a particular purpose, title, and non-infringement.
- We do not warrant that the Services will be uninterrupted, secure, or error-free, or that any defects will be corrected.
- We do not guarantee the quality, safety, legality, or suitability of any materials listed or purchased through the Services, nor the conduct of any user.

Some jurisdictions do not allow the exclusion of certain warranties, so some of the above exclusions may not apply to you.

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13. Limitation of Liability

To the fullest extent permitted by law:

13.1 **No consequential damages.** Loadout Marketplace and its officers, directors, employees, agents, partners, and licensors shall not be liable for any indirect, incidental, special, consequential, punitive, or exemplary damages, including lost profits, lost data, or business interruption, arising out of or related to your use of the Services or these Terms.

13.2 **Cap on damages.** In no event shall our total liability for all claims relating to the Services exceed the greater of (a) **US $100** or (b) the amount you paid to us in fees in the **six (6) months** preceding the event giving rise to the claim.

13.3 **Basis of the bargain.** You acknowledge that the limitations of liability in this Section are a fundamental basis of the bargain between you and Loadout Marketplace.

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14. Indemnification

You agree to indemnify, defend, and hold harmless Loadout Marketplace and its officers, directors, employees, agents, and affiliates from and against any claims, liabilities, damages, losses, and expenses (including reasonable attorneys' fees) arising out of or related to:

- Your use or misuse of the Services
- Your violation of these Terms
- Your violation of any law or regulation
- Your User Content
- Any transaction or dispute between you and another user

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15. Termination

15.1 **By you.** You may stop using the Services and close your account at any time.

15.2 **By us.** We may suspend or terminate your access to the Services, or any portion thereof, at any time with or without notice, including if we reasonably believe you have violated these Terms, created risk or possible legal exposure for us, or for any other reason in our sole discretion.

15.3 **Effect of termination.** Upon termination, your right to use the Services will immediately cease. Certain provisions of these Terms that by their nature should survive termination will survive, including but not limited to ownership provisions, warranty disclaimers, limitations of liability, and indemnity.

16. Governing Law and Dispute Resolution

16.1 **Governing law.** These Terms and any dispute arising out of or related to them or the Services shall be governed by and construed in accordance with the laws of the **State of Delaware**, without regard to conflict of law principles.

16.2 **Informal resolution.** Before filing any claim against us, you agree to try to resolve the dispute informally by contacting us at the email below. If we cannot resolve the dispute within thirty (30) days, either party may bring a formal proceeding.

16.3 **Arbitration.** Except where prohibited by law, any dispute, claim, or controversy arising out of or relating to these Terms or the Services shall be resolved by **binding arbitration** administered by a recognized arbitration provider, rather than in court, except that you may assert claims in small claims court if your claims qualify.

16.4 **Class action waiver.** To the fullest extent permitted by law, you and Loadout Marketplace agree that any proceedings shall be conducted only on an **individual basis** and not as a class, consolidated, or representative action.

(Consult a lawyer to confirm this section fits your jurisdiction and risk profile.)

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17. Changes to the Services and Terms

17.1 **Changes to Services.** We may modify or discontinue all or part of the Services at any time, with or without notice.

17.2 **Changes to Terms.** We may update these Terms from time to time. If we make material changes, we will provide notice (such as by posting a notice on the Site or sending an email). Continued use of the Services after the effective date of updated Terms constitutes your acceptance of those changes.

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18. Miscellaneous

18.1 **Entire agreement.** These Terms, together with our Privacy Policy and any additional policies referenced herein, constitute the entire agreement between you and Loadout Marketplace regarding the Services.

18.2 **Severability.** If any provision of these Terms is held invalid or unenforceable, the remaining provisions will remain in full force and effect.

18.3 **No waiver.** Our failure to enforce any provision of these Terms is not a waiver of our right to do so later.

18.4 **Assignment.** You may not assign or transfer these Terms or your rights or obligations hereunder without our prior written consent. We may assign our rights and obligations under these Terms freely.

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19. Contact Us

If you have any questions about these Terms, please contact us at:

Loadout Marketplace, Inc.
Email: **[duncanclipp@loadout-marketplace.com]**
Website: **https://loadout-marketplace.com**